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File No.: EXP202213514

RESOLUTION OF EXPIRATION OF PROCEEDINGS

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On October 27, 2022, a complaint was filed with registration number REGAGE22e00048297003 before the Spanish Agency for Data Protection against ALLIANZ COMPAÑÍA DE SEGUROS Y REASEGUROS, S.A. (hereinafter, the respondent). The reasons for the complaint are as follows:

According to the complainant, on June 1, 2022, they received an email from their ex-partner attaching a document related to the data of a car insurance policy subscribed by the complainant with the respondent, as well as a report from the General Directorate of Traffic, apparently extracted from the systems of the insurance company, data that someone accessed without authorization.

The complainant stated that they had never authorized third parties outside the policy to access such information. Furthermore, they indicated having received, on the same date, another message from their ex-partner via email, stating the following: "We now have the complete policy for both cars."

SECOND: On December 20, 2022, after analyzing the documentation in the file, a resolution was issued by the Director of the Spanish Agency for Data Protection, agreeing to the inadmissibility of the complaint for not finding reasonable indications of the existence of an infringement within the jurisdiction of this Agency.

THIRD: On January 18, 2023, the complainant filed an optional appeal for reconsideration, expressing their disagreement with the contested resolution.

FOURTH: On March 31, 2023, after analyzing the appeal, a resolution was issued by the Director of the Spanish Agency for Data Protection agreeing to its acceptance and the admission of the complaint for processing in accordance with the provisions of Article 65 of the LOPDGDD.

FIFTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the supervisory authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Investigative Actions

Article 67 of the LOPDGDD states the following regarding preliminary investigative actions:

"1. Before the adoption of the agreement to initiate proceedings, and once the complaint has been admitted for processing, if any, the Spanish Agency for Data Protection may carry out preliminary investigative actions in order to achieve a better determination of the facts and circumstances that justify the processing of the procedure."

The Spanish Agency for Data Protection shall act in any case when the investigation of treatments involving mass traffic of personal data is necessary.

2. The preliminary investigative actions shall be subject to the provisions of Section 2 of Chapter I of Title VII of this organic law and may not last longer than twelve months from the date of the agreement of admission for processing or from the date of the agreement by which its initiation is decided when the Spanish Agency for Data Protection acts on its own initiative or as a result of communication sent to it by the supervisory authority of another Member State of the European Union, in accordance with Article 64.3 of this organic law.”

III

Expiration of the Proceedings

In relation to the preliminary actions, the Regulation for the development of the LOPD (RLOPD), approved by Royal Decree 1720/2007, of December 21, in force throughout

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that does not contradict, oppose, or prove incompatible with the provisions of the GDPR and the LOPDGDD, in its article 122.4 states that “The expiration of the term without a decision being issued and notified to initiate sanctioning proceedings will result in the expiration of the preliminary proceedings.”

In accordance with the provisions of the transcribed articles, the preliminary proceedings must be understood as expired if, more than twelve months have elapsed from the date of admission of the complaint, and no decision has been issued and notified to initiate sanctioning proceedings.

In the present case, the calculation of the twelve-month maximum duration of the preliminary proceedings began on December 20, 2022, and they are still pending completion, so they must be declared expired.

IV

Initiation of new investigative proceedings

On the other hand, article 95.3 of the aforementioned LPACAP states that:

“The expiration will not, by itself, produce the prescription of actions by the individual or the Administration, but the expired proceedings will not interrupt the prescription period.

In cases where it is possible to initiate a new procedure due to the absence of prescription, the acts and procedures whose content would have remained the same had the expiration not occurred may be incorporated into it. In any case, the new procedure must comply with the procedures for allegations, proposal of evidence, and hearing of the interested party.”

In this regard, the National Court, in its judgment of July 10, 2013 (JUR 2013\259250), considers that “the declaration of expiration of the preliminary investigative proceedings initiated by the Spanish Agency for Data Protection does not pose any obstacle for that entity to initiate or restart other preliminary investigative proceedings on the same facts, as long as the prescription period for the administrative infringement under investigation has not elapsed.”

In the present proceedings, the investigation has not yet concluded as it has proven to be a process of enormous complexity both from a technical standpoint, as well as due to the volume of documentation that must be analyzed and studied. Additionally, new lines of investigation have emerged that need to be evaluated, so despite the time elapsed, the initiated investigation must be completed in its entirety.

Consequently, since the facts under investigation are not prescribed, instructions

are given to the General Subdirectorate of Data Inspection to initiate new investigative proceedings.

Therefore, in accordance with what has been indicated, by the director of the Spanish Agency for Data Protection, IT IS AGREED:

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FIRST: TO DECLARE the EXPIRATION of the present preliminary investigative proceedings.

SECOND: TO OPEN new investigative proceedings and incorporate into these new proceedings the documentation that integrates the preliminary proceedings declared expired by this act.

THIRD: TO NOTIFY this Resolution to ALLIANZ COMPAÑÍA DE SEGUROS Y REASEGUROS, S.A. and to the complainant party.

Against this resolution, which concludes the administrative process as provided by art. 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of arts. 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

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Mar España Martí

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